

The Jagir Employees Pension and Gratuity Rules, 1359 Fasli

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The Jagir Employees Pension and Gratuity Rules, 1359 Fasli

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Rule THE-JAGIR-EMPLOYEES-PENSION-AND-GRATUITY-RULES-1359-FASLI of 1359

Published on 3 January 1950

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The Jagir Employees Pension and Gratuity Rules, 1359 Fasli

Published vide Notification No. 5 dated the 3rd January 1950, of the Government, Hyderabad, Revenue Department

1.

These rules may be called the Jagir Employees Pension and Gratuity Rules, 1359 Fasli, and shall come into force from the date of their publication in the Jarida.

2.

[(1) These rules shall apply to persons employed by a Jagirdar, to Lawazima employees and to Baghat and Bazarath employees (hereinafter called Jagir employees) employed exclusively for the administrative work of the Jagir before the date of transfer to Government of the administration of the Jagir and who have not been thereafter employed in Government service, but they shall not apply to persons employed by the Jagirdar for his private or personal work.

Explanations.-

(a)

"Lawazima employees" means Chowkidar, Bahldar, Shagarpesha, Reshanchowki, Nakarkhana and similar other establishments engaged by the Jagirdars for maintaining their dignity and position.

(b)

"Baghat and Bazarath employees" means Kamaties, Carpenters, Masons, Electricians and such other employees as were maintained by Jagirdars for the supervision and upkeep of gardens and buildings and for the collection of rates and taxes.]

(2)

The question whether any person is a Jagir employee shall be determined by the Jagir Administrator whose decision shall be final:

[Provided that, in the case of Baghat and Bazarath employees, 50 per cent, of the amount payable to the said employees as pension for 10 years, shall be recovered from the commutation amount payable to the Jagirdars.]

[Added by Notification No. 33, dated 9th July, 1953.]

3.

The expenditure to be incurred on account of pension or gratuity to Jagir employees shall be borne by Government.

4.

No person who after retiring from Government service, was re-employed in a Jagir shall be entitled to any pension or gratuity for his service in the Jagir.

5.

(1)

Pension or gratuity shall be granted under these rules to whole time permanent Jagir employees of only such jagirs in which it was customary prior to the date of the transfer to Government of the administration of the Jagir to grant pension or gratuity to their employees.

(2)

The question whether it was customary in any Jagir to grant pension or gratuity to its employees or whether employees of such Jagirs were whole time permanent Jagir employees shall be determined by the Jagir Administrator whose decision shall be final.

6.

[

[Substituted for original rule 6, vide Notification No. 25, dated 17th May 1950.]

Jagir employees, who after the date of transfer to Government of the administration of jagirs, are not employed in Government service shall be entitled to pension or gratuity as provided hereinbelow :-

(a)

In the case of Jagirs, where prior to the date of transfer of their administration to Government, the provisions of the Hyderabad Civil Service Regulations were being followed for purpose of grant of pension or gratuity, pension or gratuity shall be granted in accordance with the provisions of the said Regulations.

(b)

In the case of jagirs where pension or gratuity used to be granted not in accordance with the provisions of the Hyderabad Civil Service Regulations but according to their own rules, pension or gratuity shall be granted in accordance with the rules which were observed in such jagirs :

(i)

Provided that, in case where such rules are more liberal to the employees than the corresponding provisions of the Hyderabad Civil Service Regulations, the latter shall be applied;

(ii)

Provided further that, if the rules which were in force in such jagirs did not make any distinction between superior and inferior employment for purpose of grant of pension or gratuity under the Hyderabad Civil Service Regulations or under the rules observed in such jagirs, whichever are less liberal to such employees.

(c)

Jagir employees shall be granted leave to which they are entitled at the time of retirement and if they are not entitled to any such leave, they shall be given salary for three months in lieu of notice.

(d)

Jagir employees shall be allowed to add one-tenth of the qualifying service for purpose of pension or gratuity.]

(e)

[In case of the employees of the three former Paigahs who are granted pension under these Rules, dearness allowance shall be paid at the rate of one half of the pension on pensions not exceeding Rs. 6 per month and at the rate of Rs. 4-8-0 per month on pension exceeding Rs. 6 per month but not exceeding Rs. 50 per month. The employees getting a pension of more than Rs. 50 per month but not more than Rs. 54-8-0 shall be paid dearness allowance to the extent of the difference between such pension and Rs. 54-8-0.

[Substituted by the present clause (e) vide Notification No. 3, dated the 30th January, 1953.]

The employees of Salar Jung Estate who are granted pensions under these rules shall get a dearness allowance at the following rates :-

(a)

From Rs. 1 to Rs. 9, D. A. Rs. 4 p.m.

(b)

From Rs. 10 to Rs. 20, D. A. Rs. 6 p. m.

(c)

From Rs. 21 to Rs. 30, D. A. Rs. 5 p. m.

(d)

The employee getting a pension of more than Rs. 30 per month but not more than Rs. 35 shall be paid dearness allowance to the extent of the difference between such pension and Rs. 35.

Employees of other jagirs will not be entitled to any dearness allowance on their pensions.]

[Substituted by the present sub-rule (I) of Rule 2, vide Hyderabad Government Notification No. 33, dated the 9th July, 1953.]

7.

Jagir employees who had retired on pension before the date of the transfer to Government of the administration of the Jagir, shall be entitled to draw pension as before and the expenditure thereof shall be chargeable according to rule 3.

8.

[

[The original rule 8 was deleted, and the original rules No. 9 and 10 were renumbered as rules No. 8 and 9 respectively, vide Notification No. 25, dated the 17th May, 1950.]

Jagir employees who may after the date of transfer in Government of the administration of the Jagir be employed in Government service, either permanently or temporarily, shall be allowed to Count their period of service in the Jagir towards pension or gratuity for the purposes of Article 257 of the Hyderabad Civil Service Regulations.]

9.

[

[The original rule 8 was deleted, and the original rules No. 9 and 10 were renumbered as rules No. 8 and 9 respectively, vide Notification No. 25, dated the 17th May, 1950.]

Statements for grant of pension or gratuity, as the case may be, under these rules shall be prepared by the Jagir employee and submitted to the Jagir Administrator who shall verify and sanction in the manner prescribed for grant of pension or gratuity to Government servants. The concerned Jagirdars shall accord every facility to the Jagir Administrator in the verification of the statements. After verification and sanction the Jagir Administrator shall send the statements and other necessary documents to the Controller General of Accounts and Audit for the issue of payment orders.

10.

Compassionate pension may be granted at such rates not exceeding the rates prescribed in and subject to the rules for the time being in force for the payment of compassionate pensions to the survivors of Government servants, only to the survivors of employees of such Jagirs in which prior to the date of the transfer to Government of the administration of the Jagir, it was customary to grant such compassionate pensions.]

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